



2025:DHC:565-DB



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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**
+ W.P.(C) 15303/2024, CAV 536/2024, CM APPL. 64261/2024
& CM APPL. 64262/2024

UNION OF INDIA AND ORSPetitioners
Through: Mr. B. Ramaswamy, CGSC
with Mr. Dayal Chowdhury, Adv.

versus

SONALI DAMNERespondent
Through: Mr. Rajesh Chauhan, Adv.

CORAM:
HON'BLE MR. JUSTICE C. HARI SHANKAR
HON'BLE MR. JUSTICE AJAY DIGPAUL

ORDER (ORAL)
% **28.01.2025**

C.HARI SHANKAR, J.

CM APPL. 64262/2024 (Exemption)

1. Exemption allowed subject to all just exceptions.
2. Application stands disposed of.

CAV 536/2024

3. Since learned Counsel for the respondent has appeared, the caveat stands discharged.

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W.P.(C) 15303/2024 & CM APPL. 64261/2024 (stay)

4. This is one of several matters in which the Central Administrative Tribunal has directed the candidate, who aspired to be recruited as Constable in the Delhi Police, to be examined by a Dermatologist to ascertain whether he has a tattoo on his forearm.

5. Given the innocuous nature of the direction, we have, in several similar cases¹, declined to interfere, noting that the Tribunal has merely directed the respondent to be examined by a dermatologist, who would assess the respondent's functional fitness for appointment to the post of Constable in the Delhi Police in the light of Clause 13.2 of the advertisement for recruitment to the post of Constable (Executive) male and female in the Delhi Police Examination 2023. Clause 13.2 does not allow an aspirant to the post of Constable to possess any tattoo on her, or his, right forearm.

6. While, therefore, declining to interfere with the impugned order passed by the Tribunal, we deem it appropriate to direct the dermatologist, who would examine the respondent in terms of the impugned order of the learned Tribunal, to also keep in mind the observations contained in the judgment of this Court in ***Staff Selection Commission v Deepak Yadav***².

¹ **SSC v Priti Bhati (2024 SCC Online Del 6735)**, **SSC v Viraa Singh (2024 SCC Online Del 6763)** and several other similar cases

² **2024 SCC OnLine Del 5162**



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7. With the aforesaid observation, this petition is disposed of.

C. HARI SHANKAR, J.

AJAY DIGPAUL, J.

JANUARY 28, 2025

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Click here to check corrigendum, if any

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